

[illegible]

Solicitation/Contract Form Continuation

Instrument Name: HVAC Maintenance Services

Product Service Code : J041

Continuation of Supplies or Services and Prices/Costs**Additional Information/Notes**

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	HVAC preventive maintenance will be performed once for each of the 42 HVAC units during the months of June through July, as specified in the PWS. Product Service Code: J041 North American Industry Classification System (NAICS): 238220 Pricing Arrangement: Firm Fixed Price	1	Job		
0002	HVAC preventive maintenance will be performed once for each of the 42 HVAC units during the months of February through March as specified in the PWS. Product Service Code: J041 North American Industry Classification System (NAICS): 238220 Pricing Arrangement: Firm Fixed Price	1	Job		
0003	CLIN 0003 is an unpriced CLIN. -Offerors shall not provide pricing, quotes, or cost assumptions for this CLIN in their quotes. - When needed, the Contracting Officer will issue a modification for as needed, unscheduled HVAC and electrical maintenance and repairs in accordance with PWS Sections 5.3.2 and 5.3.3. Product Service Code: J041 North American Industry Classification System (NAICS): 238220 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line	HVAC preventive maintenance will be performed once for each of the 42 HVAC	1	Job		

Item 1001	units during the months of June through July, as specified in the PWS. Product Service Code: J041 North American Industry Classification System (NAICS): 238220 Pricing Arrangement: Firm Fixed Price				
Option Line Item 1002	HVAC preventive maintenance will be performed once for each of the 42 HVAC units during the months of February through March as specified in the PWS. Product Service Code: J041 North American Industry Classification System (NAICS): 238220 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item 1003	CLIN 1003 is an unpriced CLIN. -Offerors shall not provide pricing, quotes, or cost assumptions for this CLIN in their quotes. - When needed, the Contracting Officer will issue a modification for as needed, unscheduled HVAC and electrical maintenance and repairs in accordance with PWS Sections 5.3.2 and 5.3.3. Product Service Code: J041 North American Industry Classification System (NAICS): 238220 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item 2001	HVAC preventive maintenance will be performed once for each of the 42 HVAC units during the months of June through July, as specified in the PWS. Product Service Code: J041 North American Industry Classification System (NAICS): 238220 Pricing Arrangement: Firm Fixed Price	1	Job		
Option		1	Job		

Line Item 2002	HVAC preventive maintenance will be performed once for each of the 42 HVAC units during the months of February through March as specified in the PWS. Product Service Code: J041 North American Industry Classification System (NAICS): 238220 Pricing Arrangement: Firm Fixed Price				
Option Line Item 2003	CLIN 2003 is an unpriced CLIN. -Offerors shall not provide pricing, quotes, or cost assumptions for this CLIN in their quotes. - When needed, the Contracting Officer will issue a modification for as needed, unscheduled HVAC and electrical maintenance and repairs in accordance with PWS Sections 5.3.2 and 5.3.3. Product Service Code: J041 North American Industry Classification System (NAICS): 238220 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item 3001	HVAC preventive maintenance will be performed once for each of the 42 HVAC units during the months of June through July, as specified in the PWS. Product Service Code: J041 North American Industry Classification System (NAICS): 238220 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item 3002	HVAC preventive maintenance will be performed once for each of the 42 HVAC units during the months of February through March as specified in the PWS. Product Service Code: J041 North American Industry Classification System (NAICS): 238220 Pricing Arrangement: Firm Fixed Price	1	Job		

Option Line Item 3003	CLIN 3003 is an unpriced CLIN. -Offerors shall not provide pricing, quotes, or cost assumptions for this CLIN in their quotes. - When needed, the Contracting Officer will issue a modification for as needed, unscheduled HVAC and electrical maintenance and repairs in accordance with PWS Sections 5.3.2 and 5.3.3. Product Service Code: J041 North American Industry Classification System (NAICS): 238220 Pricing Arrangement: Firm Fixed Price	1	Job		
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Continuation of Description

Requirements

The purpose of this requirement is to perform the required biannual HVAC system maintenance services, HVAC system repairs, and electrical repairs at the listed UTC buildings throughout the McGregor Range in Chaparral New Mexico.

Continuation of Inspection and Acceptance

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Destination Instructions: As defined in the PWS DoDAAC: W910BB CountryCode: USA W6CL MCGREGOR RANGE CONTROL BLDG 2527 CHAFFEE RD, FORT BLISS TX 79916-6807 FORT BLISS, TX 79916-6807 UNITED STATES
0002	Inspection and Acceptance Location Both Destination Instructions: As defined in the PWS DoDAAC: W910BB CountryCode: USA W6CL MCGREGOR RANGE CONTROL BLDG 2527 CHAFFEE RD, FORT BLISS TX 79916-6807 FORT BLISS, TX 79916-6807 UNITED STATES
0003	Inspection and Acceptance Location Both Destination Instructions: As defined in the PWS DoDAAC: W910BB CountryCode: USA

	W6CL MCGREGOR RANGE CONTROL BLDG 2527 CHAFFEE RD, FORT BLISS TX 79916-6807 FORT BLISS, TX 79916-6807 UNITED STATES
Option Line Item 1001	Inspection and Acceptance Location Both Destination Instructions: As defined in the PWS DoDAAC: W910BB CountryCode: USA W6CL MCGREGOR RANGE CONTROL BLDG 2527 CHAFFEE RD, FORT BLISS TX 79916-6807 FORT BLISS, TX 79916-6807 UNITED STATES
Option Line Item 1002	Inspection and Acceptance Location Both Destination Instructions: As defined in the PWS DoDAAC: W910BB CountryCode: USA W6CL MCGREGOR RANGE CONTROL BLDG 2527 CHAFFEE RD, FORT BLISS TX 79916-6807 FORT BLISS, TX 79916-6807 UNITED STATES
Option Line Item 1003	Inspection and Acceptance Location Both Destination Instructions: As defined in the PWS

	DoDAAC: W910BB CountryCode: USA W6CL MCGREGOR RANGE CONTROL BLDG 2527 CHAFFEE RD, FORT BLISS TX 79916-6807 FORT BLISS, TX 79916-6807 UNITED STATES
Option Line Item 2001	Inspection and Acceptance Location Both Destination Instructions: As defined in the PWS DoDAAC: W910BB CountryCode: USA W6CL MCGREGOR RANGE CONTROL BLDG 2527 CHAFFEE RD, FORT BLISS TX 79916-6807 FORT BLISS, TX 79916-6807 UNITED STATES
Option Line Item 2002	Inspection and Acceptance Location Both Destination Instructions: As defined in the PWS DoDAAC: W910BB CountryCode: USA W6CL MCGREGOR RANGE CONTROL BLDG 2527 CHAFFEE RD, FORT BLISS TX 79916-6807 FORT BLISS, TX 79916-6807 UNITED STATES
Option Line Item	Inspection and Acceptance Location

2003	Both Destination Instructions: As defined in the PWS DoDAAC: W910BB CountryCode: USA W6CL MCGREGOR RANGE CONTROL BLDG 2527 CHAFFEE RD, FORT BLISS TX 79916-6807 FORT BLISS, TX 79916-6807 UNITED STATES
Option Line Item 3001	Inspection and Acceptance Location Both Destination Instructions: As defined in the PWS DoDAAC: W910BB CountryCode: USA W6CL MCGREGOR RANGE CONTROL BLDG 2527 CHAFFEE RD, FORT BLISS TX 79916-6807 FORT BLISS, TX 79916-6807 UNITED STATES
Option Line Item 3002	Inspection and Acceptance Location Both Destination Instructions: As defined in the PWS DoDAAC: W910BB CountryCode: USA W6CL MCGREGOR RANGE CONTROL BLDG 2527 CHAFFEE RD, FORT BLISS TX 79916-6807 FORT BLISS, TX 79916-6807 UNITED STATES

Option Line Item 3003	Inspection and Acceptance Location Both Destination Instructions: As defined in the PWS DoDAAC: W910BB CountryCode: USA W6CL MCGREGOR RANGE CONTROL BLDG 2527 CHAFFEE RD, FORT BLISS TX 79916-6807 FORT BLISS, TX 79916-6807 UNITED STATES
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Continuation of Deliveries or Performance

0001	Delivery Schedule Delivery Period From 01 Jun 2026 to 31 May 2027 Quantity 1 Job Address and POC Service Performance Site DoDAAC: W910BB CountryCode: USA W6CL MCGREGOR RANGE CONTROL BLDG 2527 CHAFFEE RD, FORT BLISS TX 79916-6807 FORT BLISS, TX 79916-6807 UNITED STATES Period of Performance From 01 Jun 2026 To 31 May 2027
0002	Delivery Schedule Delivery Period From 01 Jun 2026 to 31 May 2027 Quantity 1 Job Address and POC Service Performance Site DoDAAC: W910BB CountryCode: USA W6CL MCGREGOR RANGE CONTROL BLDG 2527 CHAFFEE RD, FORT BLISS TX 79916-6807 FORT BLISS, TX 79916-6807 UNITED STATES Period of Performance

	From 01 Jun 2026 To 31 May 2027
0003	Delivery Schedule Delivery Period From 01 Jun 2026 to 31 May 2027 Quantity 1 Job Address and POC Service Performance Site DoDAAC: W910BB CountryCode: USA W6CL MCGREGOR RANGE CONTROL BLDG 2527 CHAFFEE RD, FORT BLISS TX 79916-6807 FORT BLISS, TX 79916-6807 UNITED STATES Period of Performance From 01 Jun 2026 To 31 May 2027
Option Line Item 1001	Delivery Schedule Delivery Period From 01 Jun 2027 to 31 May 2028 Quantity 1 Job Address and POC Service Performance Site DoDAAC: W910BB CountryCode: USA W6CL MCGREGOR RANGE CONTROL BLDG 2527 CHAFFEE RD, FORT BLISS TX 79916-6807 FORT BLISS, TX 79916-6807 UNITED STATES

	Period of Performance From 01 Jun 2027 To 31 May 2028
Option Line Item 1002	Delivery Schedule Delivery Period From 01 Jun 2027 to 31 May 2028 Quantity 1 Job Address and POC Service Performance Site DoDAAC: W910BB CountryCode: USA W6CL MCGREGOR RANGE CONTROL BLDG 2527 CHAFFEE RD, FORT BLISS TX 79916-6807 FORT BLISS, TX 79916-6807 UNITED STATES Period of Performance From 01 Jun 2027 To 31 May 2028
Option Line Item 1003	Delivery Schedule Delivery Period From 01 Jun 2027 to 31 May 2028 Quantity 1 Job Address and POC Service Performance Site DoDAAC: W910BB CountryCode: USA

	W6CL MCGREGOR RANGE CONTROL BLDG 2527 CHAFFEE RD, FORT BLISS TX 79916-6807 FORT BLISS, TX 79916-6807 UNITED STATES Period of Performance From 01 Jun 2027 To 31 May 2028
Option Line Item 2001	Delivery Schedule Delivery Period From 01 Jun 2028 to 31 May 2029 Quantity 1 Job Address and POC Service Performance Site DoDAAC: W910BB CountryCode: USA W6CL MCGREGOR RANGE CONTROL BLDG 2527 CHAFFEE RD, FORT BLISS TX 79916-6807 FORT BLISS, TX 79916-6807 UNITED STATES Period of Performance From 01 Jun 2028 To 31 May 2029
Option Line Item 2002	Delivery Schedule Delivery Period From 01 Jun 2028 to 31 May 2029 Quantity 1 Job Address and POC

	Service Performance Site DoDAAC: W910BB CountryCode: USA W6CL MCGREGOR RANGE CONTROL BLDG 2527 CHAFFEE RD, FORT BLISS TX 79916-6807 FORT BLISS, TX 79916-6807 UNITED STATES Period of Performance From 01 Jun 2028 To 31 May 2029
Option Line Item 2003	Delivery Schedule Delivery Period From 01 Jun 2028 to 31 May 2029 Quantity 1 Job Address and POC Service Performance Site DoDAAC: W910BB CountryCode: USA W6CL MCGREGOR RANGE CONTROL BLDG 2527 CHAFFEE RD, FORT BLISS TX 79916-6807 FORT BLISS, TX 79916-6807 UNITED STATES Period of Performance From 01 Jun 2028 To 31 May 2029
Option Line Item	Delivery Schedule Delivery Period From 01 Jun 2029 to 31 May 2030

3001	Quantity 1 Job Address and POC Service Performance Site DoDAAC: W910BB CountryCode: USA W6CL MCGREGOR RANGE CONTROL BLDG 2527 CHAFFEE RD, FORT BLISS TX 79916-6807 FORT BLISS, TX 79916-6807 UNITED STATES Period of Performance From 01 Jun 2029 To 31 May 2030
Option Line Item 3002	Delivery Schedule Delivery Period From 01 Jun 2029 to 31 May 2030 Quantity 1 Job Address and POC Service Performance Site DoDAAC: W910BB CountryCode: USA W6CL MCGREGOR RANGE CONTROL BLDG 2527 CHAFFEE RD, FORT BLISS TX 79916-6807 FORT BLISS, TX 79916-6807 UNITED STATES Period of Performance From 01 Jun 2029 To 31 May 2030

Option	Delivery Schedule
Line	Delivery Period
Item	From 01 Jun 2029 to 31 May 2030
3003	Quantity 1 Job
	Address and POC
	Service Performance Site
	DoDAAC: W910BB
	CountryCode: USA
	W6CL MCGREGOR RANGE CONTROL
	BLDG 2527 CHAFFEE RD, FORT BLISS TX 79916-6807 FORT BLISS, TX 79916-6807 UNITED STATES
	Period of Performance
	From
	01 Jun 2029
	To
	31 May 2030

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	2017-01		
52.204-13	System for Award Management-Maintenance. (Deviation 2026-O0038)	2026-02		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation 2026-O0038)	2026-02		
52.212-4	Terms and Conditions-Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		
52.219-6	Notice of Total Small Business Set-Aside. (Deviation 2026-O0038)	2026-02		
52.222-36	Equal Opportunity for Workers with Disabilities. (Deviation 2026-O0038)	2026-02		
52.222-41	Service Contract Labor Standards. (Deviation 2026-O0038)	2026-02		

52.222-50	Combating Trafficking in Persons. (Deviation 2026-O0038)	2026-02
52.222-62	Paid Sick Leave Under Executive Order 13706. (Deviation 2026-O0038)	2026-02
52.223-12	Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners. (Deviation 2026-O0038)	2026-02
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	2024-05
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	2018-10
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	2023-03
52.233-3	Protest after Award. (Deviation 2026-O0038)	2026-02
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038)	2026-02

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
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252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	2011-09
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	2022-12
252.204-7004	Antiterrorism Awareness Training for Contractors.	2023-01
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	2024-05
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	2023-01
252.223-7008	Prohibition of Hexavalent Chromium.	2023-01
252.225-7028	Exclusionary Policies and Practices of Foreign Governments.	2003-04
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	2023-01
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	2023-06
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	2018-12
252.232-7010	Levies on Contract Payments.	2006-12

252.232-7011	Payments in Support of Emergencies and Contingency Operations.	2013-05
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	2023-11
252.247-7023	Transportation of Supplies by Sea.	2024-10

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.222-42	Statement of Equivalent Rates for Federal Hires.	2014-05		

Statement of Equivalent Rates for Federal Hires (May 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C. 5341 or 5332.

This Statement is for Information Only: It is not a Wage Determination

Employee Class	Monetary Wage-Fringe Benefits
_____	_____
_____	_____
_____	_____

(End of clause)

DFARS Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.225-7027	Restriction on Contingent Fees for Foreign Military Sales.	2003-04		

RESTRICTION ON CONTINGENT FEES FOR FOREIGN MILITARY SALES

(APR 2003)

(a) Except as provided in paragraph (b) of this clause, contingent fees, as defined in the Covenant Against Contingent Fees clause of this contract, are generally an allowable cost, provided the fees are paid to-

(1) A bona fide employee of the Contractor; or

(2) A bona fide established commercial or selling agency maintained by the Contractor for the purpose of securing business.

(b) For foreign military sales, unless the contingent fees have been identified and payment approved in writing by the foreign customer before contract award, the following contingent fees are unallowable under this contract:

(1) For sales to the Government(s) of _____, contingent fees in any amount.

(2) For sales to Governments not listed in paragraph (b)(1) of this clause, contingent fees exceeding \$50,000 per foreign military sale case.

(End of clause)

252.232-7006 Wide Area WorkFlow Payment 2023-01
Instructions.

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment

requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

Invoice 2in1

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

NA

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	HQ0490
Issue By DoDAAC	W911SG
Admin DoDAAC	W911SG
Inspect By DoDAAC	W910BB
Service Approver (DoDAAC)	W910BB
Service Acceptor (DoDAAC)	W910BB

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

TBD after award

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Addendum to Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.204-9	Personal Identity Verification of Contractor Personnel.	2011-01		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038)	2026-02		
52.222-3	Convict Labor. (Deviation 2026-O0038)	2026-02		
52.222-13	Compliance with Construction Wage Rate Requirements and Related Regulations.	2014-05		
52.223-5	Pollution Prevention and Right-to-Know Information.	2024-05		
52.223-23	Sustainable Products. (Deviation 2026-O0038)	2026-02		
52.228-5	Insurance-Work on a Government Installation.	1997-01		
52.237-2	Protection of Government Buildings, Equipment, and Vegetation.	1984-04		
52.240-91	Security Prohibitions and Exclusions. (Deviation 2026-O0038)	2026-02		
52.244-6	Subcontracts for Commercial	2026-04		

Products and Commercial
Services. (Deviation 2026-O0038)

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	1991-12		
252.225-7002	Qualifying Country Sources as Subcontractors.	2022-03		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	2023-01		

List of Contract Documents, Exhibits, or Attachments

*** END OF NARRATIVE ***

*** END OF NARRATIVE ***

Identifier	Document Name	Document Description	Reference Identifier	Date	Line Item	Page Numbers	Document Type	Provided Under Separate Cover
0001	PWS HVAC - 1MAY26	Performance Work Statement		30 Apr 2026			Attachment	No
0002	WAGE DETERMINATION 15-5229 - 29APR26	Wage Determination		01 May 2026			Attachment	No

Solicitation Provisions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.204-7	System for Award Management-Registration. (Deviation 2026-00038)	2026-02		
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services. (Deviation 2026-00038)	2026-02		

DFARS Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	2022-09		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	2016-10		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	2023-03		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	2022-05		

252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region- Representation.	2023-06
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DFARS Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	2021-05		

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) Definitions. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) Representation. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it [] will [] will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Addendum to 52.212-1, Instructions to Offerors - Commercial Products and Commercial Services

General Instructions:

Quote Submitted: This is a Request for Quote (RFQ) competed IAW FARPART 13, Simplified Procedures for Certain Commercial Items; FAR PART 12, Commercial Items. All offerors shall sign the Solicitation -SF1449 and submit their quotations using the requested contract line item (CLIN) structure to the email address stated herein by the date and time specified herein. The offeror shall include the following details for their company: name, address, telephone number, cage code, Unique Identity ID (UEID), size of business based on the NAICS used. The offeror shall include the following details for the quote: a unit price, an overall total price, any discount terms, statement stating you have read and understand the product specifications, and acknowledgement of any solicitation amendments. Quotations must be received no later than the solicitation closing date and time listed on the solicitation. The Offeror is responsible for verifying that their quotation package was received before the solicitation closing date and time. Quotes shall be valid for a minimum of 60 calendar days.

Closing Date and time for this Solicitation: Wednesday 20 May 2026, at 10:00 AM (Mountain Daylight Time) MDT. The Offeror shall submit electronic copies of their quotation package to the Contract Specialist and Contracting Officer.

Contract Specialist: SSG Dezir, Nancine at: nancine.a.dezir.mil@army.mil

Contracting Officer: Godinez, Franklin at: franklin.godinez2.civ@army.mil.

Quotation received after this date and time will be considered late in accordance with FAR 52.212-1(f) and will be not evaluated. Offerors should mark each page of their quote as "Proprietary Information" if they want it treated as Proprietary Information under the Procurement Integrity Act. The Government intends to evaluate offers and award a contract without discussions with offerors. Therefore, the offeror's initial offer should contain the offeror's best terms from a price and technical standpoint. However, the Government reserves the right to conduct discussions if later determined by the Contracting Officer to be necessary.

Site Visit Notice: A site visit will be held on Monday, 11 May 2026 at 09:00 AM MDT. The site visit will be led by a representative from the Requiring Activity, with the Contract Specialist (SSG Dezir, Nancine) also in attendance. The site visit is anticipated to last 3 to 4 hours. Participation in the site visit does not obligate the Government to award a contract, nor does it obligate the Government to reimburse any costs associated with offer preparation or attendance.

Meet-up location: McGregor Range Troop Store (PX) parking lot - 9437 Patriot St. Chaparral, NM 88081.

Note: Valid ID is required.

Request for Information (RFI): All questions and concerns shall be submitted to the Contract Specialist and Contracting Officer no later than Thursday, 14 May 2026, at 10:00 am MDT. Questions and answers will be available in the form of an amendment to the solicitation once the RFI period has closed. The Government is not obligated to award a contract because of this notice, nor does it obligate the Government to pay for any offer preparation costs including site visit costs.

SAM Registration: In accordance with the FAR 4.1102(a) Policy, offerors are required to be registered in SAM at the time an offer or quotation is submitted in order to comply with the annual representations and certifications requirement. The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation Unique Entity Identifier (UEID) followed by the unique entity identifier that identifies the Offeror's name and address. If the Offeror does not have a unique entity identifier, it should contact the entity designated at www.sam.gov for unique entity identifier establishment directly to obtain one.

Emergencies: If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

*** END OF NARRATIVE ***

Evaluation - Commercial Products and Commercial Services

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.212-2	Evaluation-Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		

Evaluation-Commercial Products and Commercial Services (Feb 2026) (Deviation 2026-O0038)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

Technical Acceptable: The contractor's quote must demonstrate its ability and understanding in performing the requirements in accordance with the performance work statement (PWS). Merely restating the requirement of PWS does not demonstrate the contractor's technical ability and understanding of the requirement and will be evaluated as such. In order to be considered for further evaluation, an Offeror must first be determined acceptable in the Technical factor. If an offer cannot comply with every requirement, that offer will not be technically acceptable.

Technical Acceptable and Unacceptable Ratings.

Rating Description

Acceptable Offer clearly meets the minimum requirements of the solicitation.

Unacceptable Offer does not meet the minimum requirements of the solicitation.

Price: The offeror shall complete the CLIN pricing of this solicitation. The offeror's price will be evaluated for award purposes by adding the total price. Offerors shall assume that the Government has no prior knowledge of their experience and will base its evaluation on the information presented in the Offeror's quote. The Contracting Officer is not responsible for locating or obtaining any information not identified in the offer. The Government intends to evaluate offers and make award without discussions; however, this does not preclude the Government from having discussions if it is in the best interest of the Government to do so. A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding

contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before the award.

(b) *Options (if applicable)*. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) *Notice of award*. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

Addendum to Solicitation Provisions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	2017-01		
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-O0038)	2026-02		

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.229-11	Tax on Certain Foreign Procurements-Notice and Representation.	2020-06		

Tax on Certain Foreign Procurements-Notice and Representation (Jun 2020)

(a) Definitions. As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area of the United States.

United States person as defined in 26 U.S.C. 7701(a)(30) means

- (1) A citizen or resident of the United States;
 - (2) A domestic partnership;
 - (3) A domestic corporation;
 - (4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and
 - (5) Any trust if-
 - (i) A court within the United States is able to exercise primary supervision over the administration of the trust; and
 - (ii) One or more United States persons have the authority to control all substantial decisions of the trust.
- (b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.
- (c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror may claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service (IRS) Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.
- (d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It ☐ is ☐ is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [Offeror must select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the IRS as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)